BEFORE THE HONOURABLE DISTRICT JUDGE OF COIMBATORE

O.P.NO. 283 OF 2023

S.Rajendran - Petitioner

-Vs-

P.S.Dhamodharan - 1st respondent

COUNTER STATEMENT FILED BY THE 1ST RESPONDENT

1. This petition is false, frivolous and unsustainable in law and on facts of the case.

2. The petitioner is put to strict proof of all the allegations except those that are specifically admitted herein.

3. The averments in para 3 to 13 of the petition that the relationship between parties to petition is admitted as true. The averments that the immovable properties set out in the petition devolved on petitioner's father Srinivasan in Schedule 2 as per Partition Deed dated 01.02.1960 and since then he was in possession and enjoyment of the same for the past 39 years as its separate owner and while so, he died intestate on 25.02.1999 by leaving behind him, his wife Savithiriammal and petitioner and respondents as his children and subsequently there was family arrangement took place between Savithiriammal, petitioner and respondents herein by writing, whereby 'A' schedule was allotted to Savithiriammal and the 1st respondent did not maintain his mother and as such she sent a petition to Chief Minister's Cell and subsequently the 1st respondent agreed for division of property and the 2nd respondent being daughter was given 15 acres of land in S.F.No.16, 64/1 and 64/3 in schedule 'D' in family arrangement and despite it, the 2nd respondent herein filed a suit in O.S.No.184/2012 on the file of Hon'ble First Additional District Judge of Coimbatore in which the said Radha was allotted with 1/4th share in items 1 to 7, by passing preliminary decree and suit against 8th item was dismissed and while so, petitioners mother wrote a unregistered Will dated 02.08.2016 in presence of attesting witnesses by bequeathing her property to petitioner and as per the decree and judgment in O.S.No.184/2012, mother Savithiriammal got 1/4th share in items 1 to 7 as detailed in the petition and whileso, the said Savithiriammal died on

11.02.2019 and after her death the petitioner got her share of property as absolute owner and thereby he is in possession and enjoyment of said property and due to pendency of appeal in A.S.No.628/2019on the file of Hon'ble High Court, Madras, he could not mutate revenue records in his name pertaining to Savithiriammal's share and the petitioner is legatee under the Will which these respondents knew well and thereby they are added as parties to the suit filed by the petitioner seeking probate of Will dated 02.08.2016 etc., are all stoutly and categorically denied as false.

4. This respondent most humbly submits that the present petition filed by petitioner is cooked up and in order to get an order from this Hon'ble Court this petition was filed based on the alleged Will dated 02.08.2016 which is not genuine. This respondent further submits that after passing preliminary decree in O.S.No.184/2012, this respondent alone preferred appeal in A.S.No.628/2019 before Hon'ble High Court by challenging the preliminary decree passed pertaining to items 1 to 7 therein. So also, the petitioner or 2nd respondent did not at all prefer any appeal pertaining to dismissal of suit as against item no.8 namely 8.34 acres in S.F.No.16 in Chettipalayam village, Coimbatore. Thus, title to the said property viz., 8.34 acres in S.F.No.16 was decided in favour of this respondent as his self-acquired property since he bought it as per Sale Deed dated 16.07.1982. In fact the said property is also added in the above petition in its pleadings. So also, it is admitted that this respondent preferred A.S.No.628/2019 on the file of Hon'ble High Court, Madras and till its disposal this petition is premature without prejudice to the contention that the alleged Will dated 02.08.2016 is not genuine.

5. This respondent further submits that the petitioner after passing decree in O.S.No.184/2012, again filed a suit in O.S.No.249/2020 on the file of District Munsif Court, Madukkarai seeking relief to declare the Will dated 02.08.2016 alleged to have been executed by his mother is valid and binding on the parties which is pending for disposal. Whileso, during its pendency, for the same relief the above O.P. is filed by suppression of facts. The petitioner in the above petition totally suppressed the filing of suit O.S.No.249/2020 before Munsif Court, Madhukarai and thus this petition is not maintainable. Moreso, as per law, if a Will is executed in Metropolitan City like Bombay, Delhi, Calcutta and Madras pertaining to properties situate therein, such Wills ought to be probated by paying necessary ad valorem

court fee and without which this petition is totally unsustainable in law and on the facts of the case.

6. Further, this respondent submits that the petitioner is a party to the suit proceedings in O.S.No.184/2012 who in turn filed a Memo therein by stating "submitting to decree" and whileso, so far as the petitioner is concerned, he is bound by the preliminary decree already passed in O.S.No.184/2012 on the Hon'ble First Additional District Court, Coimbatore with respect of all issues decided therein (without prejudice). Furthermore, the petitioner has alleged that his mother said to have executed the alleged unregistered Will dated 02.08.2016, who in turn already filed a Memo for passing a preliminary decree as per the plaint pleadings. Whereas, this respondent alone contested the suit and finally the suit in O.S.No.184/2012 was partly allowed on 12.10.2017 as referred above. This defendant humbly submits that had there been a Will, the said Savithiri Ammal would have disclosed the same in O.S. No. 184/2012, since the judgement was passed long after the date of alleged execution of the Will. However, there was no such whisper in the earlier suit, which itself raises a suspicious circumstance in the existence of the alleged unregistered Will dated 02.08.2016. This respondent most humbly submits that the alleged Will is nothing but a fraudulent document created by the petitioner herein to grab mother's share of property as a whole in exclusion of other legal heirs. Hence, the genuineness of the said Will (if produced) ought to have been decided in O.S. No.184/2012 itself without contradicting the earlier preliminary decree. However, the same is subject to the appeal filed by this respondent before the Hon'ble High Court in A.S. No. 628 of 2019 over the suit properties therein except Item No. 8.

7. This respondent most humbly submits that with respect of Item No. 8 of the suit property is concerned, it has already been decreed in O.S. No. 184/2012 that the said property exclusively belonged to this respondent and this respondent preferred appeal before the Hon'ble High Court as against all other items in granting 1/4thshare to female heirs in O.S. No. 184/2012.

8. Further, the pleadings in the petition refers to an unregistered Family Arrangement dated 31.01.1960 pertaining to which, the Hon'ble First Additional District Judge has already delivered its judgement in O.S.No.184/2012 which cannot be re-agitated by the petitioner in the present petition and more so, the 1st appeal is

also pending before the Hon'ble High Court in A.S. No. 628/2019. Thus, in all these circumstances, the present petition is totally unsustainable in law and on facts of the case.

9. This respondent most humbly submits that the present petitioner being a silent spectator in O.S. No. 184/2012 now wanted to grab the mother's share of property by fraudulent means and thereby created the so called unregistered Will dated 02.08.2016 by alleging that the mother Savithiri Ammal executed the same, which is false. This respondent submits that the alleged Will dated 02.08.2016 is not a genuine document.

10. This respondent submits that in O.S.No.184/2012, the Hon'ble First Additional District Judge, Coimbatore decided that the Item No.8 of suit property therein, namely 8.34 acres in S.F.No.16 in Chettipalayam Village, Coimbatore (in issue no.1 and 4) belongs to this respondent as per Sale Deed dated 16.07.1982 (exhibit B2 therein) over which others have no right including the petitioner in the suit. However, the petitioner herein having an eye over the said property again filed the present petition by including the said 8.34 acres in S.F.No.16 as if available for partition based on an alleged Will said to have been executed by mother Savithiri Ammal. In fact, the alleged Will dated 02.08.2016 is not genuine, fabricated and cooked up for the purpose of this case. Had really the alleged Will is true, that should have been disclosed by Savithiri Ammal during her lifetime before the court of law in earlier suit. Whereas, now the petitioner created the said instrument without knowledge of said Savithiri Ammal to defeat the judgement given in O.S.No.184/2012. This respondent does not admit the genuineness of the alleged Will which is nothing but false. The said Savithiri Ammal had no chance to execute the said Will since the case in O.S.No.184/2012 was going on for long years. This defendant reiterates that whatever be the stand, the plaintiff ought to have raised it in either appeal in A.S.No.628/2019 now pending before the Hon'ble High Court or by reopening the preliminary decree proceedings and not by way of filing this petition for which no cause of action is available. Hence, this petition is devoid of merits. This respondent reiterates that this petition is an abuse of process of law. The petitioner has not approached this Hon'ble Court with clean hands. So also, this petition is not maintainable in law and at present the petitioner and 2nd

respondent colluded with each other and filed the present petition to grab the mother's share of property by excluding this respondent as her legal heir. This petition is also barred by limitation (without prejudice). Moreso, this Hon'ble High Court has no jurisdiction to decide this petition since law does not warrant so. This respondent reiterates that the alleged attesting witnesses are his henchmen and inconnaivance with them the petitioner created the alleged Will with dishonest intention to grab the properties illegally.

Therefore, it is prayed that this Hon'ble Court may be pleased to dismiss the petition with cost and thus render justice.

ADVOCATE FOR 1st RESPONDENT **1st RESPONDENT**

VERIFICATION

I, the 1st respondent above named do hereby declare that the facts stated above are true and correct to the best of my knowledge and I signed the same as Coimbatore on

1st RESPONDENT

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O.P.NO. 283 OF 2023

S.Rajendran
- Petitioner

-Vs-

P.S.Dhamodharan
- 1st respondent

COUNTER STATEMENT FILED BY THE 1st RESPONDENT

Pre.on:

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